

Sixthly, if a writ in reall action be abated by judgement in the court of common pleas, and in a writ of error the judgement is reversed in this court, and the writ is adjudged good, this court shall proceed upon this writ, and is not restrained by Magna Carta, *ubi supra, ne curia domini regis deficeret in iustitia exhibenda.*

This court may hold plea in assise of *novel disseisin* without any patent, for it is *querela* and not *placitum*, and so not within these words *communita placita*, as it hath been expounded and warranted by continuall experience.

A *scire fac'* to repeal a patent of the king may be brought in this court. And where Fleta saith, *Nisi coram semetipso et concilio suo, vel auditoribus specialibus falsa judicia ac errores justiciariorum revertuntur*: It is to be known that all the common law errors in the court of exchequer (being the proper court of the king for his revenue and profit) were examinable before commissioners appointed by the kings writ under his great seal, which Fleta here calleth *auditores speciales*. But now by the statute of 31 E. 3. the chancelour and treasurer taking to them the justices and other sage persons, such as to them seemeth to be taken, shall examine the errors in the exchequer, &c.

^a In ancient time, when pleas were holden in parliament, when the parties descended to issue, the record was adjourned into the kings bench to be tried there.

^b See the statute of W. 1. against preposterous hearings in this court, and the exposition of the same in the second part of the Institutes.

^c By the statute of *Artic' super Cart.* the chancelour and the justices of the kings bench were to follow the court: but notwithstanding both the chancery and the kings bench were at this time settled courts during the severall terms * of the year, as by infinite records both before and after this statute doth appear. So as at this time they did not attend in the kings court, but when they were called yet were accounted as parcell of the kings household as long as they followed the court; but this cumbersome attendance wholly ceased in the reign of E. 3. and yet the lord chancelour would have had his purveyance, as if he had continued still as one of the household, untill he and all others, but those of the kings, queens, or princes household only, were restrained by act of parliament. 34 E. 3. cap. 2.

times and termes the court of chancery did sit.

3 H. 7. 22.
14 H. 7. 14.
23 E. 3. 46.
11 H. 4. 49. in
nativo habenda.

F. N. B. 177.
30 Aff. 35. Aff.
de mord.

3 H. 4. 7.

See more hereof
in the chapter of
the Exchequer.
31 E. 3. cap. 12.

^a Rot. par.
18 E. 3. 28. 97.
Placit. int. Jo.
de novo Borgo &
Regman, &c.

^b W. 1. cap. 14.
Against prepos-
terous hearings.

^c Art. sup. cart.
28 E. 3. cap. 5.
Glan. temp.
H. 2. lib. 2. ca. 6.
& lib. 17. ca. 2.
*Coram iusticiis
domini regis in
banco sedentibus.
Vid. ad iudicatu
coram rege in
every terme,
from 1 E. 2. dur-
ing all his reign
in every severall
term in theyears.
And in all those*
34 E. 3. ca. 2.

* [73]

Also upon perusall of the records in the reign of H. 3. from the beginning of his reign untill the ending of it, this court sat in the term time where the other courts of justice did sit. And the pleas were stiled to be holden *coram rege* as to this day they are: and this appeareth by Fitzh. Abridgement, in the titles of Corone, of Brief, of Wast, &c. and by Bracton who in many places voucheth judgments in the reign of H. 3. in terms *coram rege*. And this appeareth also in elder times: but hereof thus much shall suffice to prove, that at the making of the said act of 28 E. 1. and long before, this court in term times sat with the kings other courts, and specially for pleas of the crown, &c. and that the said act

And so did the
chancery both of
them being to
some purposes
but one court as
it appeareth in
the chapter of
the court of
chancery.